

**LITTLE ROCK POLICE DEPARTMENT
GENERAL ORDER**

G. O. 325 LICENSE PLATE READER (LPR)

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I. Purpose

The purpose of this policy is to provide employees of the Little Rock Police Department with guidelines for application and use of license plate readers (LPR), management of LPR data, and maintenance of LPR equipment.

II. Policy Statement

It is the policy of the Little Rock Police Department to use license plate readers to enhance law enforcement's ability to detect violations of law, recover stolen property, locate missing persons, apprehend fugitives, assist in investigations, and other tasks in accordance with procedures and guidelines set forth in this policy. Additionally, data captured from LPRs will be used properly as defined herein.

III. Definitions

LPR: Automated license plate reader with mobile or fixed cameras.

LPR System: The LPR and all associated equipment and databases.

Hot List: Any database that contains lists of license plate numbers that are of interest to police personnel, such as those associated with vehicles and/or license plates that have been stolen, wanted for specific crimes, or those that are associated with, or may assist with the identification of, suspects involved in criminal activity. This will also include data held by the Office of Motor Vehicles, the Arkansas Crime Information Center including without limitation the Arkansas Crime Information Center's Missing Persons database, the National Crime Information Center, and the Federal Bureau of Investigation Kidnapping and Missing Persons database.

LPR Data: Data obtained by an LPR from license plates that were read by the device, including potential images of the plate and the vehicle on which it is displayed, the date and time, and information regarding the location of the police vehicle in which the LPR is installed, and any other data captured by or derived from any automatic license plate reader system, and, which may be stored on the department's computer servers.

Hit: LPR read matched to a license plate that has previously been uploaded on a departmental "Hot List."

IV. Procedures

A. General

1. Only authorized LPR systems, owned or provided by the department, shall be used.

2. LPRs will be used only by employees who have been trained in the operation and use of the LPR System.
3. Mobile LPRs will be available upon request to personnel based on availability and departmental need. Personnel requesting use of this technology will complete LRPD Form 5610-159 Request for Technology and submit it to an RTCC Supervisor for processing.
4. Authorized users may create custom “hot lists” within the LPR systems; however, these hot lists should be named in a standard and consistent format that contains the users, full name and rank (ex. OFC. John Doe, SGT. Jane Doe)
 - a. Users should maintain only one hotlist. In the event an additional hot list is necessary, a request should be made in writing to an RTCC Supervisor for approval.
 - b. A monthly audit of hot-lists will be conducted by an RTCC Sergeant. Any lists observed to be named outside of the standard naming convention will be purged. Repeated offenses will result in removal from the LPR system.

B. Equipment

1. LPR equipment will be under the supervision and management of the Real-Time Crime Center (RTCC).
2. All LPR equipment will be installed and removed by a manufacturer-approved service center or departmental personnel approved by the manufacturer.
3. Any malfunctions or operational issues with the LPR system will be reported to an officer’s immediate supervisor. The supervisor will contact the Real-Time Crime Center in order for issues to be addressed.
4. Daily equipment operations
 - a. Visual inspection of mobile exterior cameras for cleanliness, damage, or unauthorized alterations.
 - b. Download the most current data file of stolen and “of interest” vehicles containing all the current ACIC information if not downloaded automatically by the LPR system.
 - c. Manually add any license plate numbers that are “of interest” but not included in the file downloads. Any LPR authorized user manually adding data to the hot list for an automated alert by the LPR system is required to remove the data from the hot list when the data is no longer relevant to an ongoing investigation or there is no longer a legitimate law enforcement interest in maintaining that information in the system.

C. LPR Operation

1. LPRs may be used during regular patrol duties, special operations or details such as high crime area patrols, STEP activities, directed patrols, assisting in criminal investigations, and other activities as approved by an RTCC supervisor or their designee.
2. Upon receiving a “hit,” the LPR authorized user will visually verify the displayed information matches the subject license plate (e.g., correct letters, numbers, state of issue, and any other verifiable information). If practical, an LPR authorized user should verify the hit through ACIC before taking enforcement action that is based solely upon an LPR alert. Upon verifying the alert is valid, the LPR authorized user shall take appropriate action based upon the type of hit in accordance with training, policy, and law.
3. LPR usage for Administrative Investigations shall require written approval from the Chief of Police. However, prior approval shall not be required for city-issued vehicles.

D. LPR Data

1. All LPR data will be uploaded to the LPR servers periodically based upon the system parameters but at least once per month.
 - a. LPR data will be maintained no longer than 150 days on the LPR server, and then automatically purged by the system.
 - (1) Any LPR data that involves a hit from which an enforcement action, an investigation, or a prosecution resulted will be added to the case file and maintained therein until no longer needed.
2. An RTCC Supervisor will conduct an audit of LPR data quarterly to ensure compliance with all related policy, procedure, and state laws.
3. LPR data maintained on the LPR servers will be accessed for criminal justice reasons only, by those employees authorized by RTCC Supervisor(s) or their designee, and who have been issued a username and password for access.
 - a. LPR data shall not be shared with anyone outside of law enforcement. Exceptions shall be made for data subject to FOIA requests in compliance with state law.
4. When an authorized user conducts a search of the LPR system a “reason” must be provided if there is a space to do so on the query page (e.g., stolen, hit & run, etc.).
 - a. The entered reason must be apparent in order to ensure proper usage of the system.
5. LPR data captured by the department’s LPRs may be shared with other law enforcement agencies if evidence of an offense is indicated.
6. An RTCC Supervisor, or their designee, will compile a ~~monthly~~ biannual statistical LPR data report to stay in compliance with A.C.A. § 12-12-1805.
 - a. The ~~monthly~~ biannual statistical data report shall be maintained by an RTCC supervisor for a period of 18 months.

b. The reports will cover two standard periods of January-June and by July-December. The report will NOT be created on a "rolling" basis.

7. The report shall include the number of license plates scanned and the names of the lists against which captured plate data were checked.
8. Each check of captured plate data against a list shall include:
 - a. The number of confirmed matches;
 - b. The number of matches that upon further investigation did not correlate to an alert; and,
 - c. The number of matches that resulted in arrest and prosecution.

Revisions will be underlined and italicized.

Deletions are denoted with a strikethrough.